

26VECP00257 26VECP00257

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-20

Motion: CLAIMANT'S MOTION TO QUASH SUBPOENAS

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Case Number: 26VECP00257 Hearing Date: August 20, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JUAN WILLIS

LONGINO,

Claimant,

vs.

PROGRESSIVE CLAIMS,

Respondent.

CASE NO: 25VECP00257

[TENTATIVE]

ORDER RE:

CLAIMANT'S

MOTION TO QUASH

SUBPOENAS

Dept. W

8:30 a.m.

August 20, 2026

[TENTATIVE] ORDER: The Court GRANTS

Claimant's Motion to Quash in part. Specifically, the Court orders these subpoenas be modified to only request information from the last ten years related to Claimants claimed physical and mental injuries.

Background

This

is an uninsured motorist claim currently in arbitration. The case itself arises from a 2022 motor vehicle accident. Claimant Juan Longino, a driver for a rideshare app, was rearended by an unknown driver who fled the scene of the accident. Claimant, as well as his two passengers (who are non-parties), have filed claims against Respondent Progressive Claims – Claimant's UIM provider.

Claimant has testified that he suffered both physical and mental injuries as a result of this accident. Additionally, during discovery, Claimant asserted that he had been injured in previous accidents in the past ten years.

On May 15, 2026, in an attempt to acquire further information about these past accidents and potential injuries, Respondent served Deposition Subpoenas for Production of Business Records to nonparties Kaiser Permanente, Jose Leiro, Allstate Insurance Company, and Progressive Casualty Insurance Company. These depositions requested, among other things, Claimant's medical records, billing records, radiology records.

Now, Claimant moves to quash or narrow the scope of these requests.

Discussion

Claimant moves to quash multiple subpoenas for business records brought by Respondent against various medical providers. (Mot. to Quash, p. 4:13-24.)

Under CCP § 1987.1, "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored

information, or other things before a court . . . the court . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (CCP § 1987.1(a).)

i)

The Content of the Subpoenas at Issue

To determine whether these subpoenas need to be quashed or modified, the Court must first establish the content of the subpoenas at issue. For instance, Respondent’s subpoenas request the following information from non-party Kaiser Permanent’s Central ROI unit:

“Any and all medical records, files, reports, correspondence, whatsoever, relating to any care, treatment, diagnosis, prognosis, consultation and/or findings, including but not be limited to, any and all emergency room records, nurses notes, SOAP notes, operative reports, radiology reports, pathology reports, all test and test results, medication records, physical and/or occupational therapy records, workers' compensation records, sign-in sheets, color photographs, patient information sheets, handwritten notes, transcriptions, prescriptions, telephone messages, electronic media and any documents in the file from other health care providers, from any and all times to the present date pertaining to [Claimant]...”

(Mot. to Quash, Ex. 1.)

Similarly, Respondent requests the following from non-party Progressive Casualty Insurance Company:

“Any and all records, files, reports and correspondence including but not limited to claim files, injuries, treatment, medical records, settlements, payments, all photographs (including Color Photos, if available) and any and all explanations of benefits paid to or on behalf of [Defendant].”

(Mot. to Quash, Ex. 1.)

These, and similar requests are brought against nonparties Kaiser Permanente, Jose Leiro, Allstate

Insurance Company, and Progressive Casualty Insurance Company. (See generally, Exhibit 1.)

ii)

Claimant's Arguments

Claimant's main argument

is that the scope of these subpoenas is far too broad. As noted above, Respondent has requested, "Any and all medical records . . . from any and all times."

(Ibid.) However, Claimant's

injury claims are narrower than this. Specifically, Claimant has asserted in FROG 6.2 that he suffered physical injuries to his arms, elbows, shoulders, hands, wrists, mid-back, and lower back. (Opp. Exhibit 1, p. 12:3-6.)

Additionally, as explained by Respondent's attorney Alexandria Hopson, Claimant has also alleged mental injuries, such as "[deprivation] of sleep, leading to long lasting insomnia, night terrors, and constant fatigue,' that Claimant struggles with activities of daily living including "brushing his teeth, shower, and dressing," that Claimant 'has become heavily reliant on high doses of liver-taxing pain medications' and that Claimant suffers from 'feeling hopeless' as well as suffering from panic attacks, and feelings of paranoia." (Opp. Hopson Decl. ¶ 6.) Thus, Claimant's potential damages are limited to these physical and mental injuries.

The Court agrees that the

scope of Respondent's subpoenas should be limited to these injuries. Under California case law, a plaintiff makes a "partial waiver" of their privacy rights when they bring a personal injury lawsuit. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842 [quoting Britt v. Superior Court (1978) 20 Cal.3d 844, 859.] However, the scope of such waiver must be narrowly, rather than expansively construed, so that plaintiffs will not be unduly deterred from instituting lawsuits by fear of exposure of private activities. (Ibid.) An implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit. (Vinson v. Superior Court, supra, 43 Cal.3d at p. 842 [emphasis added].) Thus, the Court will narrow the scope of these subpoenas to only seek information related to the claimed mental and physical injuries, as these would be directly relevant to Claimant's claim.

Additionally, the Court

agrees that the timespan of these requests should be limited to the last ten years. In response to FROG No. 11.1, which asked, "in the past 10 years have

you filed an action or made a written claim or demand for compensation for your personal injuries?”, Claimant responded, “Yes”. (Opp. Ex. 1, p. 22:15-27.) Given this response, there is a strong reason to believe that there is evidence from some time in the past 10 years that is relevant to the scope of Claimant's injuries in the case at hand. Thus, discovery of documents from this time period is appropriate. However, the Court is less convinced that discovery beyond this timeframe is appropriate. A request for documents from “any and all times” is so broad that it risks harming Claimant's privacy rights, and there is no reason to believe there is any information beyond this ten-year mark that might be directly relevant to this claim. Thus, Claimant's privacy interest outweighs the speculative discovery value. For this reason, the Court will also limit the scope of these subpoenas to the last ten years.

Conclusion

The Court GRANTS Claimant's Motion to Quash in part. Specifically, the Court orders these subpoenas be modified to only request information from the last ten years, related to Claimants claimed physical and mental injuries.

IT
IS SO ORDERED, Claimant TO GIVE NOTICE.

August 20, 2026

Judge of the Superior Court